controls the making of laws, it protects liberties, it checks the executive, it provides for the democratic methods of bringing about changes in the political and economic structure. But in India there is no such constitution and the word can mean no such thing.[1] To use it here is merely to introduce an idea which has no place in the India of to-day. The word 'constitutional' is often used here, strange to say, in support of the executive's more or less arbitrary actions. Or else it is used in the sense of 'legal'. It is far better to confine ourselves to the words 'legal' or 'illegal', though they are vague enough and vary from day to day.

A new ordinance or a new law creates new offences. To attend a public meeting may be an offence; so also to ride a bicycle, to wear certain clothes, not to be home by sunset, not to report oneself to the police daily—all these and numerous other acts are offences to-day in some part of India. A certain act may be an offence in one part of the country and not in another. When these laws can be promulgated by an irresponsible executive at the shortest notice, the word 'legal' simply means the will of that executive and nothing more. Ordinarily that will is obeyed, willingly or sullenly, because the consequences of disobedience are unpleasant. But for any one to say that he will always obey it means abject submission to a dictatorship or irresponsible authority, the surrender of his conscience, and the impossibility of ever gaining freedom, so far as his activities are concerned.

In every democratic country to-day there is an argument going on as to whether radical economic changes can be brought about in the ordinary course through the constitutional machinery at their disposal. Many people are of opinion that this cannot be done, and some unusual and revolutionary method will have to be adopted. For our purpose in India the issue of this argument is immaterial, for we have no constitutional means of bringing about the changes we desire. If the White Paper or something like it is enacted, constitutional progress in many directions will be stopped completely. There is no way out except by revolution or illegal action. What

[1] Mr. C. Y. Chintamani, the eminent Liberal leader and editor-in-chief of the *Leader* newspaper, has himself laid stress on the lack of any kind of constitutional government in India, in his criticism in the U.P. Council, of the Report of the Parliamentary Joint Select Committee on India: "Better submit to the present unconstitutional government rather than to the more reactionary and further more unconstitutional government of the future."